

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ramsey AlQaisi	Team: Team # 1	CCRB Case #: 201407923	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/26/2014 2:23 PM	Location of Incident: Farragut Road and Albany Avenue	18 Mo. SOL 1/26/2016	Precinct: 67		
Date/Time CV Reported Sun, 08/03/2014 9:15 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 08/03/2014 9:15 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christopher Mcdonald	23355	947240	067 PCT
2. POM Delvis Garcia	11947	945194	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Delvis Garcia	Abuse: PO Delvis Garcia stopped an individual.	A . Victim Unidentified
B . POM Christopher Mcdonald	Abuse: PO Christopher Mcdonald stopped § 87(2)(b)	B . Unsubstantiated
C . POM Christopher Mcdonald	Abuse: PO Christopher Mcdonald searched § 87(2)(b)	C . Unsubstantiated

Case Summary

On July 26, 2014, at approximately 2:23 p.m., PO Christopher McDonald and PO Delvis Garcia of the 67th Precinct allegedly stopped § 87(2)(b) and an unidentified male in the vicinity of Farragut Road and Albany Avenue in Brooklyn (**Allegations A and B**). § 87(2)(b) alleged that PO McDonald searched his pockets (**Allegation C**). § 87(2)(b) and his friend were not arrested or summonsed.

Mediation, Notice of Claim and Criminal Histories

§ 87(2)(b) rejected mediation. § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident as of December 5, 2014 (encl. 10). § 87(2)(b), § 86(1)(b), § 87(2)(g), § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed the following CCRB complaints (encl. 2a):
 - § 87(2)(b) § 87(2)(b)
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 - § 87(2)(b)
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 - § 87(2)(b)
 - § 87(2)(b)
- PO Christopher McDonald has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. 1a). This is PO Delvis Garcia's first CCRB complaint and he has been a member of the service for seven years (encl. 1b).

Potential Issues

§ 87(2)(b) provided a license plate number for an unmarked car which was assigned to the 67th Precinct (encl. 4e, 5). According to PO McDonald's and PO Garcia's memo books, they were assigned to a different unmarked car (encl. 7b, 8b). § 87(2)(g) § 87(2)(b) § 87(2)(g) accurately provided the shield numbers for PO McDonald and PO Garcia, § 87(2)(g) § 87(2)(g)

§ 87(2)(g)

Findings and Recommendations

Explanation of Identification of Subject Officers

PO McDonald and PO Garcia did not recall the incident and did not recognize § 87(2)(b) from a photo (encl. 7d, 8d).

However, § 87(2)(b) accurately provided PO McDonald and PO Garcia's shield numbers (encl. 6b-6c). § 87(2)(b) stated that PO McDonald was wearing a shirt with a character from the television sitcom 'Family Guy' with the words, "You suck." In PO McDonald's CCRB interview, he acknowledged owning this shirt though he did not recall whether he wore it on the date of incident (encl. 8d).

§ 87(2)(b) stated that he had just left the Golden Krust Restaurant before the incident when the establishment was having a grand opening celebration. On January 6, 2015, the Golden Krust was called and the manager confirmed that the grand opening was on July 26, 2014.

Both officers stated that after their arrest at approximately 1 p.m., they were inside of the 67th Precinct stationhouse for the rest of their tours. § 87(2)(b) stated that the incident happened at approximately 2:23 p.m. Therefore, it is likely that the actual time of the incident was before 1 p.m. on July 26, 2014.

§ 87(2)(g)

Allegation A - PO Delvis Garcia stopped § 87(2)(b)

§ 87(2)(b) alleged that his friend was stopped by PO Garcia (encl. 6b-6c). However, § 87(2)(b) refused to provide the name or contact information for his friend. Neither PO Garcia nor PO McDonald prepared any documentation of the incident which would have this information. § 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **victim unidentified**.

Allegation B - PO Christopher McDonald stopped § 87(2)(b)

Allegation C - PO Christopher McDonald searched § 87(2)(b)

§ 87(2)(b) alleged that he and his friend were walking down the street when PO McDonald and PO Garcia approached them (encl. 6b-6c). PO McDonald walked up to § 87(2)(b) and asked if he could search him. Before § 87(2)(b) could respond, PO McDonald searched § 87(2)(b) pockets, took out the contents and then placed them back inside.

PO McDonald and PO Garcia denied stopping and searching § 87(2)(b) (encl. 7d, 8d). Both officers did not recall the incident and denied interacting with § 87(2)(b) or his friend.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Team: 1

Investigator: _____ Ramsey AlQaisi _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date